Three Places Families Get Stuck on Dad's Legal Papers When Planning Ahead

What each one looks like, why it happens, and the habit that helps with each.

Most families get stuck on a parent's legal papers in the same three places. None of them has anything to do with how much you care, and one habit helps with all three.

1 Not knowing whether you need an attorney

WHAT IT LOOKS LIKE The question goes round the table every few months. One of you says nothing is wrong, so there's nothing to take to a lawyer. Another says you ought to see someone. Meanwhile nobody has looked for the papers, because that seemed to depend on the answer.

WHY IT HAPPENS Nobody has told you which part of this is a family's work and which part is an attorney's. It's a common question: the Family Caregiver Alliance lists “When is it time to consult with an attorney?” among the questions families ask. [1]

> **WHAT TO DO INSTEAD** Do the family's part first, because it doesn't need an attorney: find the papers, copy down who they name, talk with Dad, and write your questions down. Then sort the questions. The ones about what a document means, whether it still fits, or whether to change one are legal questions, and those go to an elder law attorney. The Family Caregiver Alliance says a family can ask the local Area Agency on Aging for a legal consult or hire an attorney who specializes in elder care law. [1]

2 Getting tangled in the legal words

WHAT IT LOOKS LIKE Someone says Dad needs a trust. Someone else thinks the power of attorney and the will are the same thing. An evening of reading online leaves you with more words than you started with, and no clearer idea which of them are in Dad's desk.

WHY IT HAPPENS The words name different papers that do different jobs, and they sound alike. A power of attorney, the Consumer Financial Protection Bureau says, gives someone authority to make decisions about money or property, while a trustee can manage only the money or property in a trust. Sorting out which paper does what for one family is an attorney's work. Nobody expects a family to know it already. [2]

> **WHAT TO DO INSTEAD** You don't have to master the vocabulary. For each paper Dad has, write the name on its first page, the date and who it names. For each word you don't know, write “What is this, and what does it do in Dad's papers?” on the list for an elder law attorney.

3 Changing something before asking how it could affect Medicaid

WHAT IT LOOKS LIKE A name gets added to the house or the checking account “to keep things simple.” A form from the internet gets filled in. Something is given away because a neighbor's family did the same.

WHY IT HAPPENS Each of these looks like sensible housekeeping, and each is done with good intentions. But the Consumer Financial Protection Bureau's guide for agents says Medicaid is complicated, and to get legal advice and be very careful about decisions that may affect eligibility. How a change is treated depends on the state and the situation. [3]

> **WHAT TO DO INSTEAD** Write the idea down as a question: what you're thinking of doing, and why. Take it to an elder law attorney before anything is signed or retitled. If a change was already made at some point, it's simply one more line on the list: what was done, and when.

The one habit behind all three

Write it down, and ask before you act. Copy what the papers say, list what you don't know, and take the legal questions to an elder law attorney.

What this guide doesn't do

It doesn't tell you whether Dad needs an attorney now, what any of his papers means, or how any change would be treated. It isn't legal, financial or tax advice. It names three sticking points, which are the same three the Medicaid Planning Roadmap sees at this step.

Ready for the next step?

You know the three places families get stuck, and the habit that helps with each. The planning interview gives that habit somewhere to go: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

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WHERE THIS COMES FROM

The quoted question and the ways to find an attorney come from the Family Caregiver Alliance. The descriptions of a power of attorney and a trustee, and the caution about Medicaid, come from the Consumer Financial Protection Bureau. The three sticking points are the Medicaid Planning Roadmap's own.

1. Family Caregiver Alliance, What should I do to help get my family member's legal and financial affairs in order?
2. Consumer Financial Protection Bureau, Considering a financial caregiver? Know your options
3. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney

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